Orianaa Leisure Membership Agreement

Important: *This is a long-term lifestyle membership for curated experiences across resorts, wellness, vegetarian dining, entertainment and events, not a sale of property or an investment product. Please read this Agreement carefully before signing.*

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1. Definitions and Interpretation

This Clause 1 sets out the meaning of certain capitalised terms used throughout this Agreement. Terms defined elsewhere in this Agreement (including in the recitals, the Membership Application Form, the Tier Chart and the Points Schedule) carry the meaning given to them at first use, and that meaning applies wherever the term recurs, unless the context otherwise requires.

1.1 Defined Terms

- **"Agreement"** means this Orianaa Leisure Membership Agreement, including its recitals and all Schedules, as amended from time to time in accordance with Clause 16.2.
- **"AMC"** means the Annual Maintenance Charge payable in respect of a Membership as described in Clause 5.
- **"Blackout Dates"** means dates designated by Orianaa, from time to time and communicated via the app, portal or registered contact channels, on which certain benefits, redemptions or bookings are restricted or unavailable.
- **"Effective Date"** means the date of activation of a Membership as recorded in the Welcome Letter or Membership Certificate.
- **"Guest Card"** means a card or digital credential issued to a nominated individual permitting limited, unaccompanied use of specified benefits, as described in Clause 9.
- **"Member Network"** means the members-only network, forum and engagement platform anchored by Orianaa Prestige Club Pvt. Ltd.
- **"Membership Year"** means each successive period of twelve (12) months commencing on the Effective Date, or such other annual cycle as may be notified in the Welcome Letter.
- "Maximum Stay Limit" has the meaning given in Clause 4.6.
- **"Nominee"** means an individual formally recorded by the Member, in the manner prescribed by Orianaa, as authorised to exercise defined Membership benefits, including under Clause 13 (Transfer, Nomination and Succession).
- **"Points"** or **"Joining Points"** means the notional points allocated to a Member on activation, redeemable in accordance with Clause 6.
- **"Orianaa"**, **"we"**, **"us"** and **"our"** refer, as the context requires, to the Membership Entity and, collectively, to the Saptagiri Group.
- **"Tier"** means the specific membership category (Founder Legacy, Platinum Crest, Imperial Signature, Presidential Elite, Chairman's Privilege, Founder Circle, Corporate Membership or Privileged Membership) allotted to the Member, as recorded in the Membership Certificate.
- **"Welcome Letter"** means the letter or digital communication issued by Orianaa confirming activation of the Membership, the Effective Date, Tier and plan type.

1.2 Rules of Interpretation

- References to Clauses and Schedules are to clauses of, and schedules to, this Agreement unless stated otherwise.
- Headings are for convenience only and do not affect interpretation.

- Words importing the singular include the plural and vice versa; words importing a gender include every gender.
- References to a statute include that statute as amended, re-enacted or replaced from time to time, and include rules, regulations and notifications issued under it.
- Where this Agreement refers to Orianaa exercising a discretion, that discretion will be exercised reasonably, in good faith, and consistently with applicable consumer-protection law.

2. Parties, Background and Programme Overview

2.1 Parties

This Orianaa Leisure Membership Agreement (**"Agreement"**) is entered into between:

- **Orianaa Prestige Club Pvt. Ltd. (the "Membership Entity"), which sells the Membership and signs this Agreement, acting in association with Saptagiri Hospitality & Lifestyle Pvt. Ltd., Dreamnest Infra Pvt. Ltd.** and other designated group entities including **Saptagiri Leisure Resorts Pvt. Ltd.**, **Saptagiri Foods & Beverages Pvt. Ltd.**, **Saptagiri Entertainment Pvt. Ltd. and Saptagiri Wellness Pvt. Ltd. (together with the Membership Entity, collectively,** the **"Saptagiri Group"**, and each a **"Saptagiri Group Entity"**), which own, operate or manage different aspects of the integrated ecosystem.
- The individual or entity whose details appear in the signed Membership Application Form (**"Member", "you", "your"**).

2.2 Background and Rationale

Orianaa has developed an integrated hospitality, wellness and lifestyle ecosystem intended to give Members recurring, structured access to curated experiences over a multi-decade horizon, rather than a one-time transaction. This Agreement records the terms on which that access is granted. It is drafted with reference to how Indian consumer fora and courts have historically treated membership, timeshare and club programmes, and is intended to be read and applied consistently with that jurisprudence, including on disclosure, fairness of terms, and proportionality of consequences for default.

Prospective Members are encouraged to read this Agreement together with the Tier Chart and Points Schedule before signing the Membership Application Form, and to raise any queries with their Orianaa relationship contact prior to execution. Nothing in this Clause 2.2 creates any obligation beyond what is expressly stated in the operative clauses of this Agreement.

2.3 Nature of the Programme

The Orianaa Leisure Membership (**"Membership"**) is a **25-year lifestyle and leisure entitlement**. It provides defined usage rights, benefits and discounts in relation to Orianaa-branded resorts, wellness centres, vegetarian dining and non-alcoholic beverage outlets, entertainment venues and certain third-party partner offerings in India, for personal, family and invited-guest use.

The Membership **does not** constitute:

- any ownership or leasehold right in immovable property, a room, week, villa, plot or apartment; or
- a deposit or investment promising financial returns.

It is a service-based membership, similar in legal character to hospitality and club programmes examined in consumer decisions, where membership fees were treated as non-refundable entry payments for access to ongoing services rather than deposits, subject to consumer-law scrutiny for unfair or one-sided terms.

2.4 Integrated Ecosystem

The Membership operates within Orianaa's integrated hospitality, wellness and lifestyle ecosystem, which is designed to combine:

- holiday stays at Orianaa resorts and allied properties;
- pure-vegetarian dining and F&B concepts (including non-alcoholic beverages) operated by Saptagiri Foods & Beverages Pvt. Ltd.;
- wellness, naturopathy, spa and fitness services managed by Saptagiri Wellness Pvt. Ltd.;
- weddings, banquets and celebrations hosted at Orianaa leisure destinations;
- entertainment and events curated by Saptagiri Entertainment Pvt. Ltd.;
- a members-only network and forum anchored by Orianaa Prestige Club Pvt. Ltd.

Different Saptagiri Group Entities may therefore appear on your invoices and contracts for particular services, but your Membership relationship and core benefits are administered centrally by the membership entity named in your Welcome Letter and Membership Certificate.

2.5 Membership Contract Documents

Together, the following documents form your **Membership Contract**:

- this Agreement;
- your signed Membership Application Form and any annexures;
- the **Tier Comparison Schedule** (**"Tier Chart"**) summarising the eight membership tiers, positioning, benefit gradation and certain usage caps;
- the **Membership Tier and Points Schedule** (**"Points Schedule"**) setting out the joining fee, joining points, annual maintenance charges and select plan-type rules;
- any booking-specific terms and confirmations issued at the time of each resort stay, wellness booking, wedding or event; and
- the Saptagiri Group Privacy Notice referred to in Clause 15.

If there is any inconsistency, this Agreement prevails over marketing materials, which are illustrative only and do not override the operative terms, reflecting consumer fora's approach to mis-selling where mere signature on fine-print contracts was held insufficient to bind consumers to undisclosed harsh conditions.

Order of precedence. If there is any inconsistency between the Membership Contract documents themselves, they will be read together and, to the extent an inconsistency cannot be reconciled by that reading, will take precedence in the following order: (i) this Agreement; (ii) the signed Membership Application Form; (iii) the Tier Chart; (iv) the Points Schedule; and (v) booking-specific terms and confirmations, save that a booking-specific term prevails over (i)-(iv) solely in respect of the specific booking it confirms (for example, an agreed rate or date change for that stay).

2.6 Representations and Pre-Contractual Disclosure

Orianaa confirms that the key financial terms of the Membership — including the joining fee, AMC schedule, points bank, points validity window and the principal restrictions on use — have been disclosed to the Member prior to execution of the Membership Application Form, through this Agreement, the Tier Chart and the Points Schedule. The Member confirms that they have had a reasonable opportunity to review these documents and to ask questions before signing.

Nothing in this Clause 2.6 limits any right the Member may separately have under the Consumer Protection Act, 2019 in respect of any representation made outside the Membership Contract documents.

2.7 No Oral Variation; Non-Reliance on Representations

No representation, warranty, assurance or promise made by any sales agent, dealer, channel partner, employee or other person on behalf of Orianaa binds Orianaa unless it is recorded in writing and signed by Orianaa's authorised representative. The Member confirms that, in entering into this Agreement, the Member has relied only on this Agreement, the Membership Application Form, the Tier Chart, the Points Schedule and such other Membership Contract documents referred to in Clause 2.5, and not on any other statement, illustration or promise, whether oral or written, made outside those documents.

This Clause 2.7 does not exclude Orianaa's liability for fraud or for any misrepresentation that cannot lawfully be excluded under applicable Indian law, including the Consumer Protection Act, 2019.

3. Membership Term and General Structure

3.1 25-Year Term

Each Membership is granted for a fixed period of **twenty-five (25) years** starting from the Effective Date specified in your Welcome Letter or Membership Certificate (**"Membership Term"**).

For the avoidance of doubt:

- No automatic renewal occurs at the end of the Membership Term.
- Any extension, renewal or migration to a successor programme will be at Orianaa's discretion and on such terms (including further consideration) as may be offered at that time.

3.2 Activation and Cooling-Off Period

A Membership is treated as activated on the date recorded in the Welcome Letter, which will ordinarily follow receipt of the applicable joining fee (or first instalment, where an instalment plan applies) and completion of KYC. Orianaa will make reasonable efforts to issue the Welcome Letter and Membership Certificate within a reasonable period of activation.

Cooling-off period for online and offline sales. Whether the Membership Application Form is executed online, by telephone or through any other remote channel, or offline in person (including at an office, resort property, event or sales presentation), the Member may cancel the Membership within **eight (8) days** of the later of (a) the date of execution of the Membership Application Form, or (b) the date of receipt of the Welcome Letter, by written notice to Orianaa (**"Cooling-Off Period"**), without needing to show cause.

On a timely cancellation within the Cooling-Off Period, Orianaa will refund the joining fee actually paid, less reasonable processing charges disclosed at the time of sale and the value of any benefits already availed, within a reasonable period (not exceeding 30 days) of receipt of the cancellation notice.

After the Cooling-Off Period ends, cancellation is governed by Clause 14 (Suspension, Termination and Exit) and applicable consumer law.

3.3 Phasing of Benefits Over the Term

The Membership is structured in two broad phases:

- **Years 1–11**: emphasis on high-impact, points-backed benefits, including use of a one-time bank of Joining Points to pay up to 50% of eligible bills, enhanced event benefits and promotional privileges; the flat 25% Members' Discount is available as an alternative on any bill;
- **Years 12–25**: a sustained lifestyle layer with flat 25% member discounts and continued access and privileges, even after the Joining Points bank is exhausted or expired.

This two-phase structure is intended to balance early high-value usage with long-term affordability and continuity, similar to how long-horizon hospitality memberships often front-load promotional benefits but retain core privileges over time.

Discount and Points – one benefit per bill. The flat 25% Members' Discount is available throughout the 25-year Membership Term. Points redemption of up to 50% of an eligible bill is available only during Membership Years 1 to 11. The two cannot be used together: on any bill the Member may choose either the Members' Discount or Points redemption, but not both (see Clause 6.2).

Core Benefits vs Variable Benefits. For clarity across the 25-year Term, this Agreement distinguishes between:

- **"Core Benefits"** — the flat 25% Members' Discount under Clause 4.2, the Tier-specific room-category entitlement and Maximum Stay Limit stated in the Tier Chart, and access to the Member Network — which remain guaranteed for the full Membership Term, subject only to AMC and dues being paid and this Agreement being complied with, and cannot be unilaterally withdrawn (though they may be adjusted under Clause 16.2 in a manner that preserves their core value); and
- **"Variable Benefits"** — the Joining Points bank and its redemption terms (Clause 6), promotional privileges, specific partner tie-ups, Blackout Dates and seasonal calendars, and event or entertainment privileges — which may be revised, recalibrated or discontinued over the Term as reasonably necessary for commercial or operational reasons, with notice under Clause 16.2.

3.4 Illustrative Term Timeline

The table below is illustrative only and does not modify the specific terms of AMC, points validity or benefits set out elsewhere in this Agreement; where there is any inconsistency, the operative clauses prevail.

Period	Points & AMC Position	Discount / Benefit Layer
Years 1–3	AMC waived; Joining Points bank active	Points redemption up to 50% of eligible bill, or flat 25% Members' Discount (one per bill)

Years 4–11	AMC payable annually; Joining Points bank active until expiry	Points redemption continues; flat 25% discount available as an alternative (one per bill)
Years 12–25	AMC payable annually; Joining Points bank expired (Points redemption ends after Year 11)	Flat 25% Members' Discount continues on qualifying spends

4. Detailed Membership Tiers and Benefits

4.1 Overview of Tiers

Orianaa offers eight principal membership tiers, each positioned for a distinct segment and usage intensity, as summarised below and further detailed in the Tier Chart:

Tier	Indicative Positioning	Base Room Category	Maximum Stay Limit (consecutive nights per stay)
Founder Legacy	Early-founder, core family lifestyle membership	Standard Room	7 nights
Platinum Crest	Upper-mid family tier with strong event linkage	Deluxe Room	10 nights
Imperial Signature	Higher-end family and business-owner tier	Deluxe Room	10 nights
Presidential Elite	Luxury tier with presidential-suite level access	Family Suite	14 nights
Chairman's Privilege	Limited-edition relationship-driven tier	Presidential Suite	21 nights
Founder Circle	Villa-level, extended-stay tier	Villa	30 nights
Corporate Membership	For companies, with named nominees	Presidential Suite	14 nights
Privileged Membership	Special recognition / honorary tier	Standard Room	10 nights

4.2 25-Year Duration of Tier Benefits

Subject to:

- payment of AMC from Year 4 onwards; and

- compliance with this Agreement and house rules,

each Tier's **core architecture** is intended to last the full 25-year Term, namely:

- eligibility for the flat 25% Members' Discount on qualifying in-house spends throughout the Term;
- entitlement to book stays within the indicative room category for that Tier, any number of times during the Membership Year, subject to availability, the applicable Points structure and the Tier's Maximum Stay Limit under Clause 4.6, adjusted as per annual season and inventory policies;
- access to the Member Network and associated events across the Term;
- tier-level priority in allocation during peak and demand-compressed dates (for example, Founder Circle and Chairman's Privilege receiving first access to villas and key dates, subject to booking-window rules).

Where Orianaa changes product configurations (for example, adding or re-branding room categories), it will endeavour to **map existing tier entitlements to an equivalent or reasonably comparable level**, similar to how financial and loyalty products adjust benefit descriptions upon portfolio changes while preserving core value.

4.3 Tier-Wise Illustrative Benefits (Non-Exhaustive)

Without limiting the full Tier Chart, the following illustrations apply across the Term, subject to periodic recalibration to maintain commercial viability and fairness:

- **Founder Legacy**:
  - points-based entitlement to stays in Standard Rooms, any number of times during the Membership Year, subject to availability, the applicable Points structure and the Maximum Stay Limit for this Tier (7 consecutive nights);
  - priority access to curated family events and seasonal festivals;
  - enhanced early-years points support for weddings/banquets.
- **Platinum Crest**:
  - comparable points-based access to Founder Legacy, with differentiated event-linked privileges and invitations to Platinum-only member evenings;
  - priority waitlist status (below Founder Circle and Chairman's Privilege) during high-demand periods.
- **Imperial Signature**:
  - access to the Deluxe Room category, with higher per-stay guest allowances;
  - dedicated concierge support for business-linked bookings.
- **Presidential Elite**:
  - Family Suite access, subject to availability and booking-window rules;
  - priority allocation ahead of standard tiers for peak-date requests, subject to Chairman's Privilege and Founder Circle priority under Clause 4.2.
- **Chairman's Privilege**:

    - bespoke, relationship-driven servicing including curated itineraries and dedicated event management support;
    - this tier is offered on a limited-edition basis and may not be available for fresh enrolment at all times.
- **Founder Circle**:
    - villa-level stays and longer consecutive nights (up to 30 per stay) (for example, extended wellness stays or work-from-resort packages);
    - stronger integration with wellness and long-stay privileges, such as periodic health programmes.
- **Corporate Membership**:
    - allocation of nights and meeting-space credits optimised for off-peak and weekday use;
    - structured event benefits for annual conferences, offsites and client entertainment;
    - flexible nominee structure for directors and senior executives.
- **Privileged Membership**:
    - non-transferable recognition tier, curated on a case-by-case basis for select associates;
    - benefits and tenure calibrated in the specific grant letter.

4.4 Tier Upgrades and Downgrades

A Member may apply to upgrade to a higher Tier at any time during the Membership Term, subject to payment of the differential joining fee (if any) applicable at the time of upgrade, and subject to availability of the target Tier for fresh enrolment. Upon upgrade, unused Joining Points ordinarily carry forward, and any incremental points entitlement attributable to the higher Tier will be credited as notified at the time of upgrade.

Voluntary downgrades are not ordinarily available once a Tier has been activated, given the differentiated pricing and points structure across Tiers, save where Orianaa agrees to a downgrade in its discretion (for example, on grounds of genuine hardship), in which case the financial terms of the downgrade will be disclosed in writing before it takes effect.

4.5 Periodic Tier Review

Orianaa may periodically review Tier positioning and inventory allocation to reflect changes in property portfolio, demand patterns and operating costs. Any such review will be conducted consistently with Clause 4.2 (preservation of core Tier architecture) and Clause 16.2 (Amendments), and material adverse changes to a specific Member's Tier entitlements will be individually notified with reasonable prior notice.

4.6 Maximum Stay Limit and Points Utilisation

Each stay is subject to the maximum number of consecutive nights set for the Member's Tier in Clause 4.1 and the Tier Chart (the "Maximum Stay Limit"). The Maximum Stay Limit applies whether a stay is paid in cash, with Points, with the Members' Discount, or by any combination permitted under Clause 6.2.

A Member may use available Points in line with the applicable benefits and the redemption rules in Clause 6, but only within the Maximum Stay Limit. A larger Points balance does not increase the Maximum Stay Limit, and Points cannot be used to book nights beyond it.

Back-to-back or overlapping bookings by or for the same Member at the same property are treated as a single stay for this purpose. Any extension beyond the Maximum Stay Limit is at Orianaa's discretion, subject to availability, and on the terms Orianaa notifies at the time.

5. Fees, AMC and Financial Structure

5.1 Joining Fees and Plan Types

The one-time **joining fee** differs by Tier and plan type (for example, individual, core family, extended family, senior couple, corporate), as listed in the Points Schedule.

Founding tranches may enjoy enhanced Joining Points or promotional pricing; later cohorts may have different point banks or fee levels, as explicitly set out in the Points Schedule, which functions operationally like the "playing rights brochure" for club memberships where entry fees and subscription tiers are differentiated.

5.2 Instalment Facilities

Where Orianaa offers an instalment facility for payment of the joining fee, the specific schedule, any financing or processing charges, and the consequence of a missed instalment will be recorded in the Membership Application Form or a separate instalment schedule. Unless otherwise stated in that schedule, a Membership will not be treated as activated until the instalment amount required for activation (as disclosed at the time of sale) has been received. Once activated, and for so long as instalments remain outstanding, the Member's Points bank and booking access will be made available on a pro-rata basis corresponding to the proportion of the total joining fee actually received, rather than being withheld in full pending complete payment; on receipt of each subsequent instalment, the pro-rata Points and access will be adjusted upward accordingly. Where an instalment is missed, Clause 5.4 (Payment, Grace Periods and Consequences) applies by analogy to the missed instalment, and access is not automatically and entirely denied for that reason alone.

5.3 Annual Maintenance Charges (AMC)

AMC:

- is **waived for the first three (3) Membership Years** across Tiers for Members enrolled during the launch/construction-stage of the relevant resort(s), reflecting the approved introductory policy for early members;
- is payable from the Membership Year immediately following enrolment, for Members who enrol after the relevant resort(s) have become fully operational, in accordance with the final commercial policy notified to such Members at the time of enrolment [exact commencement trigger to be confirmed by management];
- is charged on a category-wise basis (by Tier and plan type), and not on a per-person basis, as detailed in the Points Schedule;
- is tier- and plan-specific, as detailed in the Points Schedule;

- is subject to reasonable inflation-linked revision with notice, similar to revisions in professional body or club membership dues, where non-payment can lead to suspension of privileges or roll removal.

Holiday, wellness and other usage benefits are **conditional on AMC and all other dues being fully paid** at the time of booking and stay. Consumer fora have upheld an operator's right to deny holidays where members have not cleared AMC and joining-balance obligations, provided this linkage is clearly disclosed, as it is here.

5.4 Payment, Grace Periods and Consequences

The AMC due date each Membership Year is the anniversary of the Effective Date, or such other date as notified in the Welcome Letter or Points Schedule. Where AMC is not paid by its due date, the following phased process applies, running to a total of **365 days** from the due date:

- **Grace Period (Days 1–60 from the due date):** Orianaa will send payment reminders; Membership benefits continue uninterrupted and no restriction is applied.
- **Restriction / Suspension (Days 61–334 from the due date):** if AMC remains unpaid after the Grace Period, booking privileges, points redemption and Member Network access are suspended (in accordance with Clause 14.1) until payment is received. The outstanding AMC continues to be owed, together with interest accruing under Clause 5.5, but no further Membership Year's AMC falls due, and no penalty beyond that interest accrues, while the Membership remains suspended on this ground.
- **Final Notice (by Day 335 from the due date):** Orianaa will issue a final written notice specifying the outstanding amount (including accrued interest), the reactivation fee (if any) that would apply, and that the Membership will be terminated on Day 365 from the due date if the outstanding amount is not received.
- **Termination (Day 365 from the due date):** if the outstanding AMC and accrued interest remain unpaid at Day 365 from the due date, Orianaa may terminate the Membership in accordance with Clause 14.2.

These phased consequences align with consumer-law expectations: operators are entitled to insist on AMC for service access, but abrupt one-sided forfeiture without notice or proportionality can be scrutinised and read down by consumer fora as unfair.

In summary: default on AMC leads only to a temporary restriction of discretionary benefits under Clause 14.1 (booking, points redemption and Member Network access) -- it does not accelerate future Membership Years' AMC and does not, by itself, affect the underlying 25-year Membership Term. Termination only follows the full phased process in this Clause 5.4 and is addressed in Clause 14.2, which does not result in automatic forfeiture of the joining fee. Interest on overdue AMC is dealt with in Clause 5.5, and the general refund position is set out in Clause 5.6.

5.5 Interest on Overdue Amounts

Where any amount payable by the Member (other than AMC governed by Clause 5.4) remains unpaid beyond its due date, Orianaa may levy reasonable interest on the overdue amount at a rate disclosed in the Points Schedule, calculated from the due date until payment, without prejudice to Orianaa's other rights under this Agreement.

5.6 Refunds

Save as expressly provided in this Agreement (including Clauses 3.2, 5.4, 5.8, 12.6, 12.7 and 14.2) or as required by applicable consumer law, joining fees and AMC already paid are non-refundable, reflecting that they compensate Orianaa for capacity reserved and services made available to the Member over the Membership Term. Termination for non-payment of AMC does not result in automatic or blanket forfeiture of the joining fee; the consequences are as set out in Clause 14.2. Where a consumer forum or court determines that a specific forfeiture is disproportionate on the facts, Orianaa will give effect to that determination.

5.7 Taxes and Invoicing

All fees and charges are exclusive of applicable GST and other statutory levies, which will be charged at prevailing rates.

Invoices may be raised by relevant Saptagiri Group Entities depending on the underlying service (for example, resort operations vs F&B vs wellness) but will be mapped to your central Membership ID for benefits and accounting.

5.8 Resort Availability Long-Stop

Orianaa has identified, in the Membership Application Form and Tier Chart, the first Orianaa-branded resort expected to serve as the primary anchor property for your Membership Tier (the "Anchor Resort"). For the purposes of this Clause 5.8, the Anchor Resort is "Operational" when at least [●] rooms/suites and core F&B facilities at that resort are fully commissioned, duly licensed, and open to paying guests for at least [●] days in any rolling 90-day period.

If the Anchor Resort has not become Operational within twenty-four (24) months of the Effective Date (the "Resort Long-Stop"), Orianaa will, within 60 days after the Resort Long-Stop, notify the Member and offer the Member a choice of the following remedies:

- a refund of the joining fee actually paid, net of (i) reasonable processing charges disclosed at the time of sale, and (ii) the fair value of any Membership benefits already availed, consistent with the refund logic in Clause 3.2; or
- allocation of equivalent value as Points or credits, redeemable against other Orianaa properties and services at the conversion ratio disclosed in the Points Schedule; or
- continuation of the Membership with enhanced non-resort benefits (as notified to the Member at that time) until the earlier of (i) the Anchor Resort becoming Operational, or (ii) the Member exercising the remedy above.

If the Member does not elect a remedy within 30 days of being notified under this Clause 5.8, the remedy in the second bullet above (Points or credits) will apply by default. This Clause 5.8 does not apply where the delay is directly caused by a Force Majeure event under Clause 12.6, in which case Clauses 12.6 and 12.7 govern instead.

6. Points System — Detailed Rules

6.1 Joining Points and Value

On activation, you receive a bank of **Joining Points** for your Tier and plan, as listed in the Points Schedule. Each point is notionally equivalent to one rupee of value when redeemed, subject to programme rules.

6.2 Points Usage Mechanics

Key mechanics include:

- Maximum of **50% of the pre-tax eligible bill** can be paid through Points per transaction, during Membership Years 1 to 11 only, subject to the no-stacking rule below;
- No Stacking of Discounts and Points. Unless expressly stated otherwise for a specific offer, only one discount mechanism may be applied to a given transaction. Where a Member is eligible for the flat 25% Members' Discount under Clause 4.2 and also wishes to redeem Points against the same bill, the Member may apply either the discount or Points redemption, but not both, on the same bill or transaction. Promotional coupons, partner offers and time-limited campaigns cannot be combined with the Members' Discount or Points redemption unless the specific offer terms expressly say otherwise.
- Points cannot be applied to:
    - taxes and statutory levies;
    - service charges or gratuities;
    - third-party vendor charges in events (for example décor vendors, outside caterers);
    - specifically designated fee items; redemption on Blackout Dates is permitted subject to availability and the applicable Points/value requirements, and is not prohibited merely because the date is a Blackout Date (see Clause 8.5).
- Points can generally be redeemed against:
    - room rate components for eligible room types, within the Maximum Stay Limit (Clause 4.6);
    - vegetarian F&B and non-alcoholic beverages at in-house outlets;
    - wellness treatments and spa services at in-house centres;
    - curated cultural or entertainment experiences marked as points-eligible.
    - Events and Weddings hosted at Orianaa venues, and other approved products/services, subject to the exclusions in this Clause 6.2 (including third-party vendor charges).

6.3 Validity, Expiry and Devaluation

Joining Points are valid within an **11-year points window** from activation, and can be redeemed only during Membership Years 1 to 11. Points not redeemed by the end of Membership Year 11 expire, subject to Clause 6.7 (Pre-Expiry Reminders for Points) and any extension under Clause 14.8 (Membership Pause).

To preserve commercial sustainability over a 25-year horizon, Orianaa may:

- adjust the points-to-rupee conversion or category-wise redemption rates;
- exclude or include certain services from points redemption; and

- devalue points with reasonable prior notice via app/portal and registered channels, subject to the cap in this Clause 6.3.

Devaluation cap. Any single devaluation of the points-to-rupee conversion rate, or of category-wise redemption rates, will not exceed **10% in any rolling 12-month period**, and Orianaa will give Members at least 60 days' prior notice before a devaluation takes effect, during which Members may redeem existing Points at the then-current (pre-devaluation) rate. This cap does not apply to the addition or removal of specific redemption categories under this Clause 6.3, which is addressed separately.

Such changes will be structured and communicated to avoid the kind of silent, opaque programme shifts that consumer fora and regulators have criticised as unfair trade practices in analogous loyalty and holiday membership contexts.

6.4 Points Statements and Reconciliation

Orianaa will make a running points statement available to each Member through the app or portal, showing accrual, redemption, expiry and balance. A Member who disputes a points entry must raise the dispute within a reasonable period (as notified in the app or portal) of the entry appearing, failing which the entry will be treated as accepted, without prejudice to any statutory right to raise the dispute later.

6.5 Points on Suspension or Termination

Where a Membership is suspended for non-payment under Clause 5.4, the associated points bank is also suspended for the duration of the suspension and reinstated on cure. Where a Membership is terminated under Clause 14, unredeemed points lapse with the Membership, without additional compensation, save where applicable consumer law requires otherwise on the specific facts of the termination.

6.6 Redemption Availability Commitment

Orianaa commits to maintaining reasonable redemption availability for Points across its resorts and eligible categories, having regard to overall inventory and demand. Without guaranteeing availability on any specific date, Orianaa will not operate the points-redemption system in a manner that renders a Member's Points illusory or incapable of practical use over the Membership Term taken as a whole, consistent with Clause 8.5 (Blackout Dates) and the devaluation protections in Clause 6.3.

6.7 Pre-Expiry Reminders for Points

Orianaa will notify each Member before Points lapse or expire under Clause 6.3, using the registered communication channels (app/portal notification, registered email, and/or SMS/WhatsApp to the registered mobile number), with a reminder sent at least six (6) months before the relevant expiry date. Orianaa may send further reminders closer to the expiry date. These reminders are provided as a Member convenience and are subject to the Member maintaining correct and current contact details under Clause 17.2; Orianaa is not liable for a failure or delay in reminders caused by incorrect contact details or by a technical failure outside Orianaa's reasonable control, without prejudice to the Member's statutory rights.

7. Resort and Event Bookings — Rates, Deposits and Cancellations

7.1 Rate Plans

Resort stays and wellness bookings will be offered under clearly labelled rate plans, for example:

- **Flexible Rates**:
  - usually higher base price but with more generous cancellation windows;
  - Members may enjoy extended free-cancellation periods versus non-members for the same rate plan.
- **Non-Refundable / Advance Purchase Rates**:
  - discounted pricing in return for stricter or no-refund cancellation terms;
  - cancellation after booking or no-shows typically result in forfeiture of the prepaid amount, except where consumer law or force majeure considerations impose different outcomes.
- **Member-Exclusive Packages**:
  - special bundles that combine nights, wellness services and F&B credits, priced and cancellable under bespoke conditions explained at booking.

7.2 Booking Procedure and Confirmation

Bookings may be made through the app, portal, member relationship desk or such other channel as Orianaa notifies. A booking is confirmed only on receipt of a written or electronic confirmation from Orianaa specifying the property, dates, room category and applicable rate plan; provisional holds made during the booking process do not, by themselves, constitute a confirmed booking.

7.3 Deposits and Advance Schedules

For larger events, especially weddings and corporate gatherings, event-specific contracts will set out:

- staged deposit milestones (for example, signing, mid-term and pre-event top-ups);
- provisional and final headcount deadlines; and
- treatment of deposits upon cancellation or material change, as set out in Clause 7.4.

These structures are designed so that charges retained upon late cancellation reasonably approximate the resort's lost opportunity and sunk preparation costs, aligning with jurisprudence that disfavors punitive "forfeit everything irrespective of circumstance" clauses.

7.4 Cancellation, Peak-Date Rules and No-Shows

Orianaa will maintain and publish a **peak / super-peak / off-peak calendar** by property and season, together with associated minimum-stay requirements and booking-window rules for room bookings, differentiated by rate plan and Member status as described in Clause 7.1.

Uniform 30-day cancellation slab for weddings and events. For all wedding, banquet and event bookings under Clause 7.3, irrespective of venue category or season, the following single cancellation slab applies, calculated by reference to the number of days between the cancellation notice and the scheduled event date:

- **30 days or more before the event:** the Member is entitled to a refund or, at the Member's election, an equivalent credit against a future booking, of all amounts paid less any deposit already applied to non-recoverable third-party commitments (for example, vendor advances placed on the Member's specific instructions under Clause 7.7), which will be itemised and evidenced on request;

- **less than 30 days before the event:** amounts paid are retained by Orianaa to the extent they reasonably approximate Orianaa's sunk preparation costs and lost opportunity for that date, save that Orianaa will use reasonable efforts to re-let the date and refund or credit any amount it is able to recover by doing so, net of reasonable re-letting costs.

This single 30-day threshold replaces any differentiated peak/super-peak/off-peak retention slabs for event cancellations, so that Members face one clear, predictable rule regardless of season or venue category. No-shows (a booking neither used nor cancelled) are treated as a cancellation received on the event date itself, i.e. within the less-than-30-day band.

These rules aim to avoid systemic conduct where membership operators repeatedly cite "peak period" to deny bookings or refunds without offering realistic alternatives, a pattern that consumer fora have condemned as deficiency in service and unfair trade practice.

7.5 Booking Modifications

Requests to change dates, upgrade room category, increase headcount, or make similar modifications after confirmation will be accommodated where reasonably possible, subject to availability and the applicable policy. A modification request does not, by itself, result in automatic cancellation of the original booking or deduction of cancellation charges. The cancellation terms under Clause 7.4 will apply to a modification, and then only to the specific portion being changed (not as an arbitrary partial deduction), where the modification genuinely amounts to a fresh booking on materially different terms (for example, a substantially later date wholly outside the original booking window and season); this will be disclosed to the Member, with reasons, before the modification is confirmed.

7.6 Overbooking and Alternative Accommodation

In the rare event that a confirmed booking cannot be honoured due to genuine operational constraints (for example, unforeseen property closure), Orianaa will offer, at the Member's option, either a comparable alternative property or room category for the same dates at no additional cost, or rescheduling to alternative dates with any applicable rate protected, or a refund of amounts paid for that specific booking together with reasonable compensation for demonstrated additional cost directly caused by the disruption, consistent with consumer-law expectations regarding deficiency in service.

7.7 Vendor Conditions for Events

Where external vendors are engaged (decor, music, specialty cuisine, photography, etc.):

- their contracts and cancellation terms will be **separate** from your contract with Orianaa;
- Orianaa's role is typically that of facilitator and venue provider, not principal contractor;
- vendor-specific advance and refund terms will be disclosed in the event documentation, and vendor charges will generally not be payable with points or covered by Orianaa liability caps.

8. Holiday, Wellness and Experiential Benefits

8.1 Holidays and Stays

Membership holidays include:

- access to Orianaa resorts and designated partner properties, subject to availability and seasonal rules;
- flat 25% Members' Discount on eligible spends at in-house outlets (including vegetarian food and non-alcoholic beverages) over the 25-year Term;
- tier-specific room-category access, any number of times during the Membership Year subject to availability and the applicable Points structure and the Tier's Maximum Stay Limit, as discussed under Clause 4.

The programme distinguishes itself from purely "week-based" timeshare models by tying usage not to a fixed week at a single property but to a broader multi-vertical ecosystem, akin to modern hospitality club programmes that blend stays, dining, and experiences over time.

8.2 Guest and Family Usage

Immediate family members recorded on the Membership Application Form may generally use holiday and wellness benefits together with or independently of the Member, subject to Tier-specific caps disclosed in the Tier Chart. Non-family guests may accompany the Member subject to any per-stay guest allowance for the applicable Tier, and unaccompanied use by guests requires a Guest Card issued under Clause 9.4.

8.3 Wellness and Medical-Adjacent Services

Wellness benefits include, where offered:

- consultations with naturopathy or wellness practitioners;
- packages of therapies or spa treatments per Membership Year, differentiated by Tier;
- access to fitness facilities and curated programmes.

These are **wellness and preventive lifestyle services**, not medical treatment. Members must:

- disclose any relevant medical conditions during intake;
- follow instructions and contraindications advised by practitioners;
- acknowledge that participation is at their own risk, as further detailed in the Liability and House Rules sections.

8.4 Entertainment and Experiences

Members may access:

- ticketed events curated by Saptagiri Entertainment Pvt. Ltd. (concerts, shows, movie screenings, festivals);
- select complimentary or discounted entry to community events at resorts;
- special experiences (for example, sunrise treks, heritage walks, cooking sessions) that may be priced separately or bundled in Member packages.

Tickets are typically non-refundable unless Orianaa cancels or materially changes the event, in which case a refund or credit will be issued as per event terms and applicable consumer law.

8.5 Seasonal Availability and Blackout Dates

Certain benefits, particularly complimentary or heavily discounted redemptions, may be subject to Blackout Dates published on the app or portal, generally corresponding to periods of exceptionally high demand (for example, major festivals or long weekends). Blackout Dates will be published sufficiently in advance to allow Members to plan alternative dates, and will not be applied so as to make a Tier's core entitlement illusory over the Membership Year taken as a whole.

8.6 Food and Beverage Benefits

All Membership F&B benefits (including the Members' Discount, Points redemption, breakfast with stays and any Tier-specific dining privileges in the Tier Chart) apply to vegetarian food and non-alcoholic beverages served at in-house outlets. Alcoholic beverages are not part of the Membership benefits and are not eligible for the Members' Discount or Points redemption.

9. House Rules and Operational Guidelines

9.1 General Conduct

Members, nominees and guests must:

- respect staff and other guests;
- comply with safety, security and hygiene rules at all times;
- avoid harassment, discrimination, abusive language, violence or unlawful acts.

9.2 Use of Facilities

Operational rules include, for example:

- pool timings, dress codes and supervision requirements applicable to both adults and children, including any child-specific supervision rules;
- gym access rules, including pre-use health declarations and equipment etiquette;
- quiet-hours policies for rooms and common areas, particularly at night.

9.3 Safety-Critical Activities

For adventure or outdoor activities:

- signed acknowledgements of risk may be required;
- age, health and, where operationally or safety relevant, weight-based restrictions or other eligibility criteria may apply;
- compliance with guides' instructions is mandatory.

These measures are consistent with industry practice and are necessary to manage inherent risks that cannot be fully eliminated without discontinuing the activities entirely.

9.4 Guest Cards and Accountability

Guest cards permit unaccompanied use of selected benefits by nominated individuals, within annual caps per Tier. Guest access is not restricted solely by reference to this annual cap: the annual cap operates

together with the per-stay guest allowances for guests accompanying the Member in person under Clause 8.2, which are governed by Clause 8.2 and not by this Clause 9.4.

The Member:

- remains responsible for the conduct of guest-card holders;
- must ensure guests are aware of and comply with house rules;
- may face suspension or termination if guest misconduct is serious or repeated.

9.5 Property and Facility Damage

Members and their guests are responsible for making good any loss or damage to Orianaa property caused by their wilful default or negligence, at reasonable, cost-linked rates disclosed at the relevant property; ordinary wear and tear is excluded. Any charge under this Clause 9.5 will be itemised and evidenced on request.

9.6 Photography, Media and Publicity

Orianaa may photograph or film common areas and events for security and promotional purposes, subject to applicable law. Members and guests who do not wish to be identifiably featured in promotional material may notify the property in advance, and Orianaa will use reasonable efforts to accommodate that request, consistent with the Privacy Notice referred to in Clause 15.

9.7 Minors and Children

Where a Membership benefit is used by or on behalf of a Member's minor child or ward:

- the accompanying parent or guardian remains responsible for the minor's conduct, safety and compliance with house rules and any activity-specific waivers;
- minors are not permitted to use pool, gym, adventure or wellness facilities unsupervised, and any age-based access restriction for a specific facility will be displayed at the facility and applied consistently;
- separate consent and indemnity forms may be required for a minor's participation in adventure, wellness or other safety-critical activities under Clause 9.3, to be signed by the minor's parent or guardian.

10. Rights and Responsibilities Over the 25-Year Term

10.1 Member Rights

Subject to this Agreement and applicable law, you are entitled to:

- enjoy the benefits and usage rights attached to your Tier for the full 25-year Term, conditional on AMC and dues being paid;
- transparent disclosure of key financial and operational terms (fees, AMC, points, major changes);
- grievance-redressal and escalation to management and, where applicable, consumer fora;
- statutory remedies under the Consumer Protection Act, 2019, including in respect of unfair trade practices or unfair contract terms, notwithstanding any contrary provision herein.

10.2 Member Responsibilities

You are responsible for:

- providing accurate information and updating contact details as required;
- timely payment of AMC and other dues;
- adhering to booking terms and not abusing flexible or complimentary benefits;
- ensuring that your guests and nominees comply with house rules and this Agreement.

10.3 Orianaa Rights

Orianaa may:

- revise AMC, fees and programme structures with reasonable notice and in line with consumer-law principles;
- suspend or terminate Membership for non-payment, fraud or serious misconduct under structured and disclosed rules;
- change or withdraw partners, properties or specific benefits, while preserving core Membership value and complying with consumer-law constraints on one-sided modifications.

10.4 Orianaa Responsibilities

Orianaa undertakes to:

- operate the programme in good faith and in accordance with this Agreement;
- use reasonable care and skill in providing services or supervising outsourced operations;
- maintain appropriate insurance cover for key operational risks;
- honour legitimate refunds, credits or alternative remedies where there is clear deficiency in service, consistent with consumer-law jurisprudence.

11. Inter-Entity Relationships within Saptagiri Group

11.1 Contracting and Service Entities

The Saptagiri Group Entity that signs this Agreement is the **Membership Entity**. Other entities may:

- own or lease resort properties and operate accommodation services;
- operate vegetarian F&B (including non-alcoholic beverages) and catering businesses;
- run wellness centres and spas;
- curate entertainment content and ticketed events;
- administer the Member Network Forum and digital engagement.

Your dealings with these entities will, where relevant, be governed by their specific terms, but always anchored to the overarching Membership relationship and benefits structure defined here.

Orianaa Prestige Club Pvt. Ltd. is the Membership Entity. It sells the Membership, signs this Agreement, invoices and collects the joining fee and AMC, administers Points, and runs the Member Network Forum and digital engagement described above.

11.2 Outsourcing and Third-Party Partners

Orianaa may partner with or outsource to third-party vendors and hotels for:

- overflow inventory or specialised experiences;
- select event components (for example, premium décor, artists);
- transport and ancillary services.

In such cases, Orianaa's liability will be limited in accordance with Clause 12 (Liability), while your primary remedies for vendor-specific failures may lie against the vendor, subject to statutory joint liability where applicable.

Facilities, properties and experiences provided by third-party partners, and wellness or medical-adjacent services referred to in Clause 8.3, are made available on an as-is, as-available basis to the extent permitted by law. Orianaa does not warrant that any such third-party facility or service is fit for a particular purpose beyond what is expressly stated in the relevant booking confirmation, and is not liable for the acts, omissions or service standards of a third-party partner save to the extent Orianaa has been negligent in its own selection or supervision of that partner.

11.3 Assignment and Change of Control

Orianaa may assign, novate or otherwise transfer its rights and obligations under this Agreement to another Saptagiri Group Entity, or to a successor operating the same or a substantially similar programme, provided that the assignee assumes Orianaa's obligations under this Agreement and the Member's accrued entitlements (Tier, points balance, AMC status) are preserved. Orianaa will notify Members of any such assignment with reasonable prior notice. The Member may not assign this Agreement save as permitted under Clause 13 (Transfer, Nomination and Succession).

12. Liability, Disclaimers and Force Majeure

12.1 Standard of Care and Exclusions

Orianaa will exercise reasonable care and skill, but:

- is not responsible for events or conditions beyond its control (such as pandemics, government restrictions, natural disasters);
- does not guarantee uninterrupted availability of every advertised facility at all times.

12.2 Liability Caps

This Clause 12.2, together with Clause 12.3 (Personal Injury and Property), sets out Orianaa's liability position under this Agreement and the two clauses are to be read together as a single liability regime. Subject to non-excludable statutory rights:

- for Membership-related claims (other than ticketed entertainment), Orianaa's aggregate liability per incident is limited to the lower of:

    - the joining fee actually paid; or
    - [X]% of the joining fee, multiplied by the fraction obtained by dividing the remaining years of the Membership Term by 25 (i.e. pro-rated to the unused portion of the 25-year Term); or
    - the value of the affected booking / event;
- for ticketed entertainment (including concerts, shows and special entertainment events within an Orianaa property), Orianaa's aggregate liability is capped at the lower of (a) 100% of the total ticket price actually paid for the affected event, and (b) Rs. 5,000 per affected ticket -- save that this cap does not apply to (i) death or personal injury caused by Orianaa's negligence, or (ii) liability that cannot lawfully be excluded or limited under the Consumer Protection Act, 2019 or other mandatory law;
- Orianaa's aggregate liability to a Member across all claims in any single Membership Year, taken together, will not exceed [X]% of the joining fee actually paid, multiplied by the fraction obtained by dividing the remaining years of the Membership Term by 25 (i.e. pro-rated to the unused portion of the 25-year Term, on the same basis as the per-incident cap above).

To the fullest extent permitted by applicable law, Orianaa is not liable for indirect, incidental, special, consequential, punitive or exemplary loss or damages, including loss of profit or loss of opportunity, even where Orianaa has been advised of the possibility of such loss. Nothing in this Clause 12.2 excludes or limits liability that cannot lawfully be excluded or limited, including under Clause 12.3.

12.3 Personal Injury and Property

Nothing in this Clause 12 excludes or limits Orianaa's liability for death or personal injury caused by its negligence, or for fraud, or for any other liability that cannot lawfully be excluded or limited under Indian law. Members remain responsible for their own valuables and are encouraged to use in-room safes or designated storage facilities where provided. Save for circumstances where the loss is directly attributable to Orianaa's negligence, and save for any liability that cannot lawfully be excluded under applicable Indian law, Orianaa has no liability for loss of, theft of, or damage to a Member's, Nominee's or guest's personal belongings while on Orianaa premises. Claims for death or personal injury will be addressed, in the first instance, through Orianaa's public liability insurance referred to in Clause 12.5, without prejudice to the Member's statutory rights and remedies.

12.4 Indemnity

The Member agrees to indemnify Orianaa against direct losses, damages or costs reasonably and properly incurred by Orianaa arising from the Member's, or their guests' or nominees', breach of this Agreement or wilful misconduct, save to the extent such losses arise from Orianaa's own negligence or breach. This indemnity does not extend to indirect or consequential losses and is subject to the Member being given a reasonable opportunity to respond before any amount is claimed.

12.5 Insurance

Orianaa will maintain public liability and other insurance cover appropriate to its resort, wellness and event operations, in amounts it considers reasonable having regard to industry practice. Members are encouraged to maintain their own travel and health insurance, particularly in connection with adventure or wellness activities under Clause 9.3.

12.6 Force Majeure

In Force Majeure situations, Orianaa may:

- temporarily suspend services or facilities;
- offer rescheduling or credits where feasible;
- prioritise safety and public-health directives.

A Force Majeure event is one beyond Orianaa's reasonable control, including natural disasters, pandemics, war, government action, strikes not caused by Orianaa, or failure of essential public infrastructure. Orianaa will notify affected Members as soon as reasonably practicable and will not treat a Force Majeure suspension, by itself, as a breach of this Agreement.

Prolonged Force Majeure. If a Force Majeure event affecting a specific property continues, or is reasonably expected to continue, for more than **90 consecutive days**, Orianaa will, in respect of Members holding confirmed bookings at that property during the affected period, offer at the Member's election: (a) rebooking at a comparable Orianaa property or room category for equivalent dates at no additional cost; (b) rescheduling to alternative dates at that property once it reopens, with any applicable rate protected; or (c) a refund on the terms of Clause 12.7. Where the Force Majeure event continues for more than **180 consecutive days** and materially prevents a Member from exercising their Tier's core stay entitlement across the wider Orianaa network (not merely the affected property), the Member may additionally elect a proportionate AMC credit for the affected Membership Year, applied against the following year's AMC.

12.7 Refunds in Force Majeure Situations

This Clause 12.7 sets out the minimum refund rights that apply when a Force Majeure event affects the Membership. It applies in addition to Clause 12.6.

- **Circumstances – cancelled bookings:** where a Force Majeure event prevents the Member from using a confirmed and prepaid booking, and either (i) the event continues for more than 90 consecutive days, or (ii) Orianaa cannot offer a comparable rebooking or rescheduling under Clause 12.6 within six (6) months of the original dates, the Member may elect a refund of the amount paid for that booking instead of rebooking or rescheduling;
- **Circumstances – permanent closure:** where a Force Majeure event permanently closes a property and, as a result, Orianaa cannot provide the Member's Tier entitlements (room category and Maximum Stay Limit) at any comparable Orianaa property within twelve (12) months of the closure, the Member may terminate the Membership by written notice and receive a refund of the joining fee actually paid, multiplied by the number of unexpired complete Membership Years and divided by twenty-five (25);
- **Eligibility:** the Member must have been in good standing (with no AMC or other dues overdue beyond the Grace Period under Clause 5.4) when the Force Majeure event began, and must apply within sixty (60) days of Orianaa's notice under Clause 12.6 or, for permanent closure, within sixty (60) days after the 12-month period ends;
- **Limitations:** (i) Points used for a booking are re-credited to the Member's account, not paid out in cash, and their validity is extended by ninety (90) days if they would otherwise expire within that period; (ii) AMC is not refunded, but the AMC credit under Clause 12.6 continues to apply; (iii) third-party vendor charges are refunded only to the extent Orianaa recovers them from the vendor, and

Orianaa will use reasonable efforts to do so; (iv) no refund is payable where the Member has accepted rebooking, rescheduling or another alternative for the same booking; (v) refunds are limited to amounts actually received by Orianaa and do not cover indirect or consequential loss; and (vi) taxes are refunded or adjusted in accordance with applicable law;

- **Procedure:** the Member must apply in writing through the app, portal, member relationship desk or registered email, quoting the Membership ID and any booking reference. Orianaa will acknowledge the request within three (3) business days, issue a reconciliation statement within ten (10) business days, and pay the approved refund within thirty (30) days of the reconciliation statement to the original payment source or the Member's verified bank account, in line with the Refund, Cancellation and Exit Policy.

13. Membership Transfer, Nomination and Succession

13.1 General Position on Transfer

A Membership is personal to the Member and is not freely transferable to third parties, save as expressly permitted under this Clause 13. This restriction reflects that pricing, points and Tier allocation are calibrated to the specific Member's profile and plan type at enrolment.

13.2 Add-On of Family Members

A Member may add or update immediate family members on the Membership Application Form in accordance with the plan type held (for example, upgrading an individual plan to a core family plan), subject to payment of any incremental fee disclosed in the Points Schedule for that plan change.

13.3 One-Time Transfer

A Membership may be transferred only once during the entire Membership Term, either to a Family Member (a "Family Transfer") or to any other individual (a "Non-Family Transfer"), subject to Orianaa's approval (not to be unreasonably withheld), the transfer fee under Clause 13.6A and any minimum holding period stated in the Tier Chart, provided all outstanding AMC and dues are cleared prior to transfer and the transferee completes fresh KYC. Points balances and remaining Tier entitlements ordinarily carry over to the transferee on the terms applicable at the time of transfer.

For this Clause 13, "Family Member" means a person related to the Member by blood, namely a parent, child, sibling, grandparent or grandchild of the Member. Once a Membership has been transferred, neither the transferee nor any later holder may transfer it again. Succession on death under Clause 13.4 is not a transfer for this purpose. Privileged Memberships are non-transferable.

13.4 Succession on Death

On the death of a Member, the Membership (including accrued points balance and remaining Tier entitlements) may be transferred to the Member's legal heir or nominee recorded on the Membership Application Form, on production of appropriate succession documentation (for example, a nomination on file, succession certificate, or legal heirship certificate as applicable), without payment of a further transfer fee. Orianaa will deal with such requests sympathetically and within a reasonable timeframe.

13.5 Corporate Membership Nominees

For Corporate Membership, the contracting entity may update its list of named nominees from time to time in the manner prescribed by Orianaa, subject to any cap on the number of active nominees disclosed in the Tier Chart. Removal or addition of a nominee does not, by itself, extend or reduce the Membership Term or affect accrued points.

13.6 No Buyback and No Resale

Orianaa does not operate, and is under no obligation to operate, any scheme for repurchase, buyback or exit financing of a Membership. A Member may not resell, list for sale, advertise or otherwise transfer a Membership for consideration to any third party except through the one-time transfer mechanism expressly permitted under Clause 13.3, and any purported resale or assignment in breach of this Clause 13.6 is void as against Orianaa and does not bind Orianaa or entitle the purported transferee to any Membership benefit.

13.6A Transfer — Detailed Conditions

Without prejudice to Clause 13.3, a one-time transfer is subject to the following conditions:

- Eligibility: the transferee may be a Family Member or any other individual who meets Orianaa's standard enrolment and KYC requirements, and the Membership must not have been transferred before;
- Process: written application by the Member, completion of fresh KYC by the transferee, and clearance of all outstanding AMC and other dues prior to transfer;
- Documentation: proof of blood relationship (for a Family Transfer), identity and address proof of the transferee, and such other documentation as Orianaa may reasonably require for KYC and fraud-prevention purposes;
- Transfer charges: for a Family Transfer, a nominal transfer fee as set out in the Points Schedule [₹● – amount to be confirmed]; for a Non-Family Transfer, ten per cent (10%) of the prevailing joining fee for the Tier; in each case plus applicable GST;
- Restrictions: a Membership may not be partially transferred; Points balances and remaining Tier entitlements transfer only in full together with the Membership, and the transferee is bound by the residual Membership Term and this Agreement as if the transferee were the original Member.

14. Suspension, Termination and Exit

14.1 Suspension for Non-Payment

Where AMC remains unpaid beyond the Grace Period described in Clause 5.4, Orianaa may suspend booking privileges, points redemption and access to the Member Network until the outstanding amount (with accrued interest under Clause 5.5) is cleared. Suspension under this Clause 14.1 does not, by itself, terminate the Membership or its remaining Term, and does not by itself cause any further Membership Year's AMC to accelerate or fall due.

14.2 Termination for Non-Payment

If the outstanding AMC and accrued interest remain unpaid at Day 365 from the due date, notwithstanding the Grace Period, Restriction/Suspension and Final Notice under Clause 5.4, Orianaa may terminate the Membership by written notice.

Termination under this Clause 14.2 does **not** result in automatic or blanket forfeiture of the joining fee. On such termination, the Member forfeits unredeemed Points (under Clause 6.5) and future Membership benefits from the effective date of termination, and remains liable for the outstanding AMC and accrued interest up to that date; the joining fee already paid is not separately forfeited by reason of non-payment of AMC alone.

Orianaa may, in its discretion and for a limited period after termination (as specified in the final notice under Clause 5.4), permit reactivation of the Membership on payment of the outstanding AMC, accrued interest and a reasonable reactivation fee (as disclosed in the Points Schedule), without loss of the Member's original Tier or accrued membership tenure. Any booking already confirmed and paid for prior to the effective date of termination will be honoured in accordance with Clause 14.5.

14.3 Termination for Cause

Orianaa may terminate a Membership with immediate effect, following a written notice describing the conduct in question and a reasonable opportunity for the Member to respond (save where the conduct involves a genuine and immediate safety or security risk), where the Member, a Nominee or a guest:

- commits fraud in connection with the Membership Application Form, KYC, or any booking or redemption;
- engages in serious or repeated misconduct in breach of Clause 9 (House Rules); or
- materially breaches this Agreement and fails to remedy the breach within a reasonable cure period after written notice, where the breach is capable of remedy.

14.4 Voluntary Exit by the Member

A Member who wishes to exit the programme other than during a cooling-off period under Clause 3.2 may do so by written notice to Orianaa. Save as required by applicable consumer law or as separately agreed, amounts already paid are not refundable on voluntary exit, for the reasons described in Clause 5.6, but any outstanding obligations (such as accrued AMC to the date of exit) will be settled and no further AMC will fall due after the effective date of exit.

14.5 Consequences of Termination

On termination of a Membership for any reason:

- booking privileges, points redemption and Member Network access cease from the effective date of termination, subject to honouring any booking already confirmed and paid for prior to that date, unless the termination is for fraud connected with that specific booking;
- unredeemed points lapse in accordance with Clause 6.5;
- any Guest Cards issued in connection with the Membership are deactivated;
- Orianaa will issue a written confirmation of termination setting out the effective date and, where applicable, the amounts forfeited and the basis for forfeiture.

14.6 Proportionality

Orianaa will exercise its termination and forfeiture rights under this Clause 14 proportionately to the nature and seriousness of the default, consistent with consumer-law principles disfavouring one-sided or punitive forfeiture, and will consider any genuine hardship representations made by the Member before finalising termination for non-payment.

14.7 Right to Refuse Enrolment, Booking or Renewal

Orianaa may, in its reasonable discretion, decline to enrol a prospective Member, decline a specific booking request, or decline to offer any extension, renewal or migration referred to in Clause 3.1, where the applicant or Member (or, in the case of a booking, any person named on it) has a documented history of fraud, serious misconduct, chargeback abuse, or termination for cause under Clause 14.3 in relation to any Saptagiri Group Entity. Orianaa will record the basis for any such refusal and, on request, provide the affected person with a summary of that basis, without prejudice to that person's statutory remedies.

14.8 Membership Pause

A Member may apply to pause the Membership on the following basis:

- Eligibility: available to a Member in good standing (with no overdue AMC or other dues) who has completed at least one (1) Membership Year and is not under suspension or notice of termination, for a genuine reason (for example, prolonged travel, relocation, medical reasons, or other reasonable cause), subject to Orianaa's approval, which will not be unreasonably withheld;
- Procedure: a pause must be requested in writing through the app, portal or member relationship desk, at least thirty (30) days before the proposed start date, specifying the start date and duration. Orianaa will approve or decline the request in writing within fifteen (15) days and will give reasons for any refusal;
- Duration: a pause may be granted for a minimum of three (3) months and a maximum of twelve (12) months in aggregate during the Membership Term; each pause must be for at least three (3) months, and no pause may be extended beyond the 12-month aggregate limit;
- Effect on Membership and Points: during a pause, (i) no AMC falls due for the paused period, and the AMC due date is deferred by the length of the pause on resumption; (ii) the Points validity window under Clause 6.3 is extended by the length of the pause; (iii) the Membership Term under Clause 3.1 is extended by the length of the pause; and (iv) booking privileges, Points redemption, the Members' Discount, Guest Cards and Member Network access are suspended for the duration of the pause; and (v) annual allowances (such as naturopathy visits, guest cards and peak-season bookings) for the Membership Year in which the pause falls are reduced pro rata, and allowances for the paused period do not carry forward;
- Conditions: a pause does not affect accrued Points balances, which remain available on resumption, and does not entitle the Member to any refund of AMC or joining fee already paid for the period preceding the pause.
- **Confirmed bookings:** bookings falling within the pause period must be cancelled before the pause starts, on the applicable cancellation terms under Clause 7;
- **Resumption:** the Membership resumes automatically at the end of the approved pause. The Member may resume early on fifteen (15) days' written notice, once the pause has lasted at least three (3) months.

15. Data Protection and Privacy

15.1 Legal Framework

Personal data processing will comply with the **Digital Personal Data Protection Act, 2023** and other applicable Indian laws, under the Saptagiri Group Privacy Notice.

15.2 Purposes, Sharing and Rights

Data will be used for:

- onboarding, verification and KYC;
- programme administration, billing and servicing;
- marketing and cross-promotion, subject to consent;
- statutory reporting and fraud prevention.

You will have rights to access, correct and, where applicable, withdraw consent, subject to legal and contractual constraints, as detailed in the Privacy Notice.

15.3 Sharing Within the Saptagiri Group

Because different Saptagiri Group Entities administer different verticals (resorts, F&B, wellness, entertainment, the Member Network), your Membership and booking data may be shared among Saptagiri Group Entities strictly for the purposes described in Clause 15.2 and consistently with the Privacy Notice. Sharing with third parties outside the Saptagiri Group (for example, outsourced vendors under Clause 11.2) is limited to what is necessary to deliver the relevant service, subject to appropriate confidentiality and data-protection undertakings from that third party.

15.4 Data Security

Orianaa will implement reasonable technical and organisational measures to protect Member data against unauthorised access, loss or misuse, and will notify affected Members and, where legally required, the relevant authority, in the event of a data breach materially affecting their personal data, in accordance with applicable law.

15.5 Retention

Member data will be retained for so long as reasonably necessary for the purposes described in Clause 15.2, including for the full Membership Term and any period thereafter required to meet statutory retention, audit or dispute-resolution obligations, after which it will be deleted or anonymised in accordance with the Privacy Notice.

16. Governance, Amendments and Dispute Resolution

16.1 Programme Governance

Orianaa will maintain:

- a designated senior team responsible for Membership policy and compliance;
- internal SOPs for handling complaints, refunds and escalations;

- periodic reviews to ensure alignment with evolving consumer-law standards on unfair contracts and trade practices.

16.2 Amendments

Orianaa may amend this Agreement and the programme if:

- changes are notified with reasonable prior notice via app/portal and registered contact channels;
- core structural changes do not retroactively strip members of essential value without proportionate mitigation;
- any term found to be unfair or one-sided by a court or consumer forum may be read down or severed, with the remainder continuing in force.

16.3 Internal Grievance Redressal

A Member who has a complaint or grievance should first raise it through the app, portal or member relationship desk. Orianaa will acknowledge the complaint within a reasonable period and aim to provide a substantive response, including any proposed resolution, within a reasonable further period, having regard to the nature and complexity of the complaint.

16.4 Mediation

If a complaint is not resolved to the Member's satisfaction through the internal process under Clause 16.3, either party may propose mediation under a recognised Indian mediation institution or panel, on terms to be mutually agreed. Participation in mediation is voluntary and does not affect either party's right to pursue other remedies, including approaching consumer fora, if mediation does not resolve the dispute within a reasonable time.

16.5 Arbitration

Unresolved disputes may be referred to arbitration seated in India, as specified in your Welcome Letter, conducted by a sole arbitrator appointed by mutual agreement (or, failing agreement, in accordance with the Arbitration and Conciliation Act, 1996), with the seat, venue and language of arbitration as specified in the Welcome Letter or as otherwise agreed in writing. Nothing in this Clause 16.5 limits your right to approach consumer fora where applicable, and the arbitration agreement in this Clause will be read down or treated as non-binding to the extent, and only to the extent, that applicable consumer-protection law renders a pre-dispute arbitration clause unenforceable against a consumer in the relevant forum.

16.6 Governing Law and Jurisdiction

The substantive law of India governs this Agreement. Nothing in this Clause 16.6 limits any right the Member may have to approach consumer disputes redressal commissions having jurisdiction under the Consumer Protection Act, 2019, including at the Member's place of residence or where the cause of action arises. Subject to the foregoing mandatory consumer-forum rights and to Clause 16.5, the civil courts at Pune, Maharashtra will have exclusive jurisdiction over all other proceedings arising out of or in connection with this Agreement.

17. Notices and Communication

17.1 Mode of Notice

Notices under this Agreement may be given by app or portal notification, registered email, SMS/WhatsApp to the registered mobile number, or courier/post to the registered address, and will be treated as effectively given when sent to the contact details last updated by the Member in accordance with Clause 10.2.

17.2 Updating Contact Details

The Member is responsible for keeping contact details current. Orianaa is not responsible for a failure of notice caused by the Member's failure to update contact details, provided Orianaa sent the notice to the last recorded details.

18. Miscellaneous

18.1 Severability

If any provision of this Agreement is held invalid, unlawful or unenforceable by a court, consumer forum or arbitral tribunal of competent jurisdiction, that provision will be severed or read down to the minimum extent necessary, and the remaining provisions will continue in full force and effect.

18.2 Waiver

No failure or delay by either party in exercising a right under this Agreement operates as a waiver of that right, and no single or partial exercise of a right precludes any further exercise of that or any other right.

18.3 Relationship of Parties

Nothing in this Agreement creates a partnership, joint venture, agency or employment relationship between the Member and Orianaa or any Saptagiri Group Entity.

18.4 Counterparts and Execution

This Agreement may be executed in physical or electronic form, including through digital or electronic signature methods recognised under the Information Technology Act, 2000, and in counterparts, each of which is deemed an original.

18.5 Third-Party Rights

Save as expressly stated (for example, in respect of Nominees and Guest Card holders exercising specific benefits), this Agreement does not confer any right on a person who is not a party to it.

18.6 Confidentiality

The Member will keep confidential, and not disclose to any third party, any commercial terms, pricing, internal policies, standard operating procedures or other non-public information shared by Orianaa in connection with the Membership, save where disclosure is required by law, by a court, regulator or consumer forum of competent jurisdiction, or is reasonably necessary to obtain professional advice on a confidential basis.

19. Entire Agreement and Interpretation

This Agreement, together with the Membership Application, Tier Chart, Points Schedule, booking terms and Privacy Notice, constitutes the entire agreement between you and the Membership Entity regarding Orianaa Leisure Membership.

It is drafted in an intentionally member-friendly yet legally robust style, reflecting best practices observed in Indian hospitality, club and membership schemes, and taking into account the consumer-protection jurisprudence and commentary cited above.

20. Schedule of Annexures

The following Schedules and Annexures, though bound and issued separately for administrative convenience, are incorporated by reference into, and form part of, this Agreement:

- **Annexure A** — Membership Application Form
- **Annexure B** — Tier Comparison Schedule ("Tier Chart")
- **Annexure C** — Membership Tier and Points Schedule ("Points Schedule")
- **Annexure D** — Saptagiri Group Privacy Notice
- **Annexure E** — Peak / Super-Peak / Off-Peak Calendar (property-specific, updated periodically and published on the app/portal)
- **Annexure F** — House Rules and Safety Acknowledgement Forms

Where any Annexure is updated in accordance with the amendment mechanism in Clause 16.2, the updated version supersedes the earlier version referenced at signing, and the current version will at all times be available to the Member through the app or portal.

21. Execution

This Agreement is executed by the parties, or their duly authorised representatives, as recorded below and/or in the Membership Application Form, and takes effect from the Effective Date.

For and on behalf of Orianaa Prestige Club Pvt. Ltd.

Name: _____

Designation: _____

Signature: _____

Date: _____

Member

Name: _____

Signature: _____

Date: _____